

US FTC Advertising & Health Claims Practical Examples (1)

Legal-status note: The examples in this document are derived from the FTC's *Health Products Compliance Guidance*. They are illustrative examples of how the FTC applies advertising principles and are not independent statutes or regulations. The FTC expressly states that the guidance does not have the force or effect of law.

Example 6 Arthricure and Before/After Images

FTC Source: Health Products Compliance Guidance — Example 6

Scenario:

A topical ointment called Arthricure claims to maintain joint health and mobility into old age.

The advertisement shows:

- an elderly woman using a walker before;
- the same woman dancing with her husband after.

FTC conclusion:

The product name and before/after imagery can imply that the product dramatically improves arthritis symptoms or can cure arthritis.

Ayurvedic Application:

An Ayurvedic pain-relief oil advertised with a before: person unable to walk / after: person walking normally presentation could communicate a therapeutic arthritis claim even if the written copy only says supports joint mobility.

Compliance Trigger:

Before-and-after images / arthritis claim / implied therapeutic claim.

Example 7 Limitation on a Health Benefit

FTC Source: Health Products Compliance Guidance Example 7

Scenario:

A multivitamin claims that it can eliminate a mineral deficiency responsible for fatigue.

However, less than 2% of the target population actually suffers from that deficiency.

FTC principle:

The advertisement should communicate the significant limitation so consumers do not understand the claim as applying broadly to everyone experiencing fatigue.

Ayurvedic Application:

If an Ayurvedic product's benefit applies only to a narrow population or specific deficiency/condition, the advertisement should not present the benefit as though it applies universally.

Compliance Trigger:

Material limitation / qualifying information / target population.

Example 8 Weight Loss Study With Diet and Exercise

FTC Source: Health Products Compliance Guidance Example 8

Scenario:

A weight-loss supplement advertisement cites a controlled clinical study showing an average 12-pound weight loss.

However, participants also exercised regularly and followed a restricted-calorie diet.

FTC principle:

The advertisement should disclose those conditions because consumers would otherwise potentially attribute the entire result to the supplement.

Ayurvedic Application:

An Ayurvedic weight-management product should not advertise a study result as **the product caused 10 kg weight loss** if the study participants also followed a calorie-restricted diet and exercise program without clearly communicating those conditions.

Compliance Trigger:

Clinical study / weight-loss claim / omitted study conditions.

Example 9 No Side Effects Implication

FTC Source: Health Products Compliance Guidance Example 9

Scenario:

An herbal product is advertised as a natural pain remedy **without the side effects of over-the-counter pain relievers**.

Evidence shows that the herbal product can cause nausea in some consumers.

FTC principle:

The comparison can imply that the herbal product has no significant side effects. The advertiser should disclose relevant side effects.

Ayurvedic Application:

Claims such as:

Natural alternative with no side effects” or Safer than conventional medicines

can create substantial substantiation and disclosure issues if evidence does not support the implied safety comparison.

Compliance Trigger:

Natural = safe / side-effect claims / comparative safety claims.

Example 10 Significant Safety Risk

FTC Source: Health Products Compliance Guidance Example 10

Scenario:

An energy drink contains an ingredient that can significantly increase blood pressure when consumed daily over an extended period.

Even though the advertisement makes no explicit safety claim, the FTC says the marketer should disclose the potentially serious risk.

Ayurvedic Application:

An Ayurvedic supplement may require disclosure of a significant known safety concern even when the advertisement does not expressly say **safe**.

Compliance Trigger:

Safety risk / material omission / adverse effects.